

25STCV02319 25STCV02319

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Division: Civil Law and Motion
Department: 506
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Case Number: 25STCV02319 Hearing Date: July 23, 2026 Dept: 506

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - CENTRAL DISTRICT

ROMANO R LEUS AND EVELYN C LEUS,

Plaintiff,

vs.

AMERICAN HONDA MOTOR CO., INC. ET AL.

Defendant.

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CASE NO.: 25STCV02319

[TENTATIVE] ORDER

DENYING DEFENDANT'S MOTIONS TO DEEM REQUESTS FOR ADMISSION ADMITTED AS TO PLAINTIFFS ROMANO AND EVELYN LEUS

Dept. 506

8:30 a.m.

JULY 23, 2026

On January 22, 2026, Plaintiffs Romano R Leus and Evelyn C Leus filed this Song Beverly action against Defendant American Honda Motor Co., Inc.

On June 26, 2026, Defendant filed the instant motions to deem requests for admission ("RFAs") admitted against Plaintiffs Romano Leus and Evelyn Leus. On July 10, 2026, Plaintiffs filed a joint opposition to Defendant's motions to deem RFAs admitted. On July 16, 2026, Defendant filed separate replies as to each Plaintiff.

I. Legal Standard

A response to requests for admission is due within 30 days after service. (Code Civ. Proc., §2033.250, subd. (a).) "If a party to whom requests for admission are directed fails to serve a timely response, the following rules apply: (a) the party to whom the requests for admission are directed waives any objection to the requests. . . (b) [t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted. . ." (Code Civ. Proc., § 2033.280, subd. (b).) "The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220. . ." (Code Civ. Proc., § 2033.280, subd. (c).)

"It is mandatory that the court impose a monetary sanction . . . on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion." (Code Civ. Proc., § 2033.280, subd. (c).)

II. Defendant's Motions to Deem RFAs Admitted as to Plaintiffs Romano Leus and Evelyn Leus are Denied

Defendant served Requests for Admission (Set One) on each Plaintiff on April 6, 2026. (Motions[1], Hurvitz Dec., ¶2.) Plaintiff served responses to the RFAs on May 4, 2026 consisting entirely of objections. (Id. at ¶3, Ex. B.) Citing *Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636, Defendant argues the May 4, 2026 responses were tantamount to no responses at all because they were unverified. (Reply, 2:22-24.) However, “the party to whom the requests for admission are directed shall sign the response under oath, unless the response contains only objections.” (Code of Civ. Proc., §2033.240, subd. (a).) Plaintiffs’ May 4, 2026 responses consisted only of objections and no verification was required. Plaintiffs therefore timely responded to the RFAs, and Defendant’s motions to deem the RFAs admitted must be denied.

Defendant’s Motion to Deem Requests for Admission Admitted against Plaintiff Romano Leus is DENIED.

Defendant’s Motion to Deem Requests for Admission Admitted against Plaintiff Evelyn Leus is DENIED.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 23rd day of July 2026

Hon. Thomas D. Long

Judge of the Superior Court

[1] Defendant’s Motions are essentially identical and supported by essentially identical declarations of counsel Hurvitz.

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